

LETTER FROM THE EXECUTIVE BOARD

Greetings,

At the outset, we would like to inform you that it gives us immense pleasure to welcome you all to this simulation of the United Nations Security Council at Vezolution Model United Nations 2024. The Executive Board members hope that this simulation turns out to be an experience worth cherishing for all of the participants, while accommodating a praise-worthy debate. Throughout the conference, we will be addressing the agenda- Deliberation on the admission of Palestine as a full Union State to foster Inclusive Diplomacy and Equitable Representation. This simulation shall be adhering to the UNA-USA Rules of Procedures, with a few necessary amendments which are required for the easy functioning of the committee.

The sole purpose of preparing this background guide is to deliver insight about the committee as well the agenda to the delegates. To begin with, this paper, called the “background guide” in common parlance, has been written with the thought that it will serve as a map for you to navigate through the mass of information which you may come across in your preparation for the conference. However, this guide by no means is the end of the research. The Executive Board will be delighted to hear you all, bringing in solid argumentations while incorporating several new realms to the agenda. Thus, as the name “map” may be hinting, it will not provide you with all the information on the agenda at hand; you will have to work a bit beyond reading this paper. In addition, it is necessary to understand that being in such a competitive environment, we don’t look out to hear what statistics or legislations you have read while researching. Rather, we will recommend you to analyze these facts and present your country’s perceptions over the relevancy of these laws. This guide will entail a few expectations that the Executive Board outlines for this committee, though we don’t want you to consider that burdening at any point. It is a part and parcel of the learning process. Having said that, kindly feel free to reach out either of the Executive Board members for any further assistance or clarifications. All the best!

Regards,

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HOW TO RESEARCH AND ANALYZE FOR MODEL UNs?

Understanding the paradigm of technicalities associated with Model UN Conferences and gathering facts over the agenda might seem to be a piece of cake, however, **utilizing your research and weaving it in accordance with the requirements of the committee** is essential to be understood. Any executive board member, irrespective of the committee you are a part of, will prefer to evaluate your analytical skills as an envoy in context to the agenda, rather than hearing arguments, which are totally derived from browsed facts. This does not limit your research skills; you are free to utilize any source of information available. However, this demands you to think beyond what exists, or utilize the existing mechanisms in a fashion that will eventually aid their current execution. An important methodology to research, analyze, and write statements for Model UN Conferences is mentioned below:

- Country's Stance & Positioning

Whenever you come across different ideologies of researching in the Model UN Circuit, one common model that will be visible everywhere is to state your country's stance on the agenda. By far, delegates end up interpreting it in the wrong fashion. Through your country's stance, you do not need to highlight your country's contributions towards the agenda, rather, you need to discover the lens your country occupies to view the agenda. For example- In the Commission on the Status of Women, discussing marital rape, it is not important for you to state and explain the domestic laws of your country, rather you need to state how do you perceive this issue and what can be the mechanism for a victim's societal inclusion globally. Here, you need to understand that one country's policies cannot have a major effect on the international community, and therefore, whatever approach you take, shall be globally or regionally executable, unless you are discussing about a particular country in your committee.

- Key to Approach the Agenda

To understand any agenda to its depth, you need to categorically understand every realm attached to it. Therefore, it is imperative to divide the agenda into smaller topics for presenting your arguments to the committee. Now, this not only widens your scope of research but also allows you to bring up unique points to the table through your paperwork. For example- In a committee discussing the New World Order, it is obvious that repetitive points will be brought to the table for financial

stability. However, by understanding it in-depth, you can build a linkage between the Developed and Developing Nations and how can the Grant mechanism between them functions. A normal division of the agenda could be on nodes of economic stability, social inclusion, legalities, and related concerns. Although, do not restrict yourselves to these basic ideas; try to diverge into more specific issues and realms. That is how your research becomes filtered and polished.

- Legal Imagination of the Agenda

While discovering any agenda, you will be coming across various past actions that the UN or other organizations have taken in this regard. Now, your role as an ambassador is not only to present your country's stance at the international forum but also to analyze these actions that have been priorly taken. This can include various conventions, strategies, and action plans that the UN has adopted or published. For getting a deeper insight into these protocols, you need to develop a legal thesis. Understanding the legal character of any such provision is imperative before you quote it in the committee. For example- While discussing the Role of Non-State Actors in an International Armed Conflict, it is necessary for you to highlight how an accountability mechanism can be derived within the existing concept of 'State Responsibility' mentioned in various legal principles. It is not important to be fancy with these legal provisions but to be logical. This is how you will be able to understand the functionality of the UN as well in depth.

- Synchronization of Statements

The executive board, irrespective of the committee you are a part of, will be expecting you to deliver statements seeing their relevance to the committee. Preparing speeches beforehand seems to be an easier task, although, implying your research at the correct time through your verbal arguments is equivalently necessary. Make sure to hear and analyze whatever other ambassadors have mentioned. Try to rebut them within your statements if you feel what they mentioned was incorrect or not aligned with your ideologies. That is how you can increase the scope for debating and rebuttals. Furthermore, when you analyze these statements logically, you will be able to question your fellow competitors, which adds up to your contribution as a delegate. Ideally, this will aid you to have a great impact on the committee.

PROOFS/EVIDENCE ACCEPTED IN THE COMMITTEE

While researching for the committee, keep in mind the credibility of the source you are using. You can use all the sources for gaining information or studying different angles/viewpoints, but a source that is not reliable won't be accepted by the Executive Board as proof or as a supporting document to your argument/statement.

Evidence/proof is acceptable from the following sources:

1. NEWS SOURCES:

A. Reuters– Any Reuters article, which clearly mentions the fact or is in contradiction of the fact being stated by a delegate in the council, can be taken under consideration. Although, the credibility of the article or resource is highly subjective in nature and Member States can deny these resources.

(<http://www.reuters.com/>)

B. State Operated News Agencies – These reports can be used in support of or against the state that owns that news agency. These reports, if credible or substantial enough, can be used in support of or against any country as such but in that situation, they can be denied by any other country in the committee. Some examples are:

i. RIA Novosti (Russia) <http://en.rian.ru/> ii.

IRNA (Iran) <http://www.irna.ir/ENIndex.htm>

iii. Xinhua News Agency and CCTV (China) <http://cctvnews.cntv>

2. GOVERNMENT REPORTS

These reports can be used in a similar way as the state-operated news agencies' reports, however, in all circumstances, can be denied by another country. Though, it is to be noted that a report that is being denied by a certain country can still be accepted by Executive Board as credible information, depending upon the substantive element of the report. Examples are –

i. Government Websites like the State Department of the USA

(<http://www.state.gov/index.htm>) or the Ministry of Defense of the Russian Federation (<http://www.eng.mil.ru/en/index.htm>)

ii. Ministry of Foreign Affairs of various nations like India

- (<http://www.mea.gov.in/>) France (<http://www.diplomatie.gouv.fr/en/>)
 Russian Federation (http://www.mid.ru/brp_4.nsf/main_eng)
- iii. Permanent Representative to the United Nations
 Reports
 (<http://www.un.org/en/members/>) (Click on any country to get to the website of the Office of its Permanent Representative)
- iv. Multilateral Organizations like NATO
 (<http://www.nato.int/cps/en/natolive/index.htm>) ASEAN
 (<http://www.aseansec.org/>) OPEC (http://www.opec.org/opec_web/en/),
 etc.

3. UN REPORTS

All UN Reports are considered to carry credible information or evidence for the Executive Board of the General Assembly.

- i. UN Bodies: Like the SC (<http://www.un.org/Docs/sc/>), GA
 (<http://www.un.org/en/ga/>), HRC
 (<http://www.ohchr.org/EN/HRBodies/HRC/Pages/HRCIndex.aspx>),
 etc.. ii. UN Affiliated Bodies like the International Atomic Energy Agency
 (<http://www.iaea.org/>), World Bank (<http://www.worldbank.org/>),
 International Monetary Fund (<http://www.imf.org/external/index.htm>),
 International Committee of the Red Cross
 (<http://www.icrc.org/eng.index.jsp>), etc..
- iii. Treaty Based Bodies like the Antarctic Treaty System
 (<http://www.ats.aq/e/ats.htm>), The International Criminal Court (<http://www.icccpi.int/Menus/ICC>)

Under no circumstances will sources like Wikipedia
 (<http://www.wikipedia.org/>), Amnesty International
 (<http://www.amnesty.org/>),
 Human Rights Watch (<http://www.hrw.org/>) or Newspapers like The Guardian
 (<https://www.guardian.co.uk/>), Times of India
 (<https://timesofindia.indiatimes.com/>), etc. be accepted as credible PROOFs
 in the committee, but may be used by the delegates for better understanding
 of any issue.

UNITED NATIONS SECURITY COUNCIL

The Security Council is one of the six principal organs of the United Nations defined by the Charter of the United Nations (Charter) (1945). The Security Council seeks to maintain international peace and security and oversees changes to the United Nations Charter. As the Security Council is the only United Nations body that can create legally-binding decisions for all Member States under Chapter VII of the Charter, it has a unique and impactful mandate to set norms and govern state actions. Traditionally, the Security Council discusses issues related to conflict, peace-building and peacekeeping missions, the protection of human rights, disarmament, and humanitarian crises. With the adoption of the 2030 Agenda for Sustainable Development (2030 Agenda) by the General Assembly in 2015, the Security Council has begun to increasingly focus on the intersection between sustainability, peace, and security.

Under the United Nations Charter, the functions and powers of the Security Council are:

- ❖ to maintain international peace and security in accordance with the principles and purposes of the United Nations;
- ❖ to investigate any dispute or situation which might lead to international friction;
- ❖ to recommend methods of adjusting such disputes or the terms of settlement;
- ❖ to formulate plans for the establishment of a system to regulate armaments;
- ❖ to determine the existence of a threat to the peace or act of aggression and to recommend what action should be taken;
- ❖ to call on Members to apply economic sanctions and other measures not involving the use of force to prevent or stop aggression;
- ❖ to take military action against an aggressor;
- ❖ to recommend the admission of new Members;
- ❖ to exercise the trusteeship functions of the United Nations in "strategic areas";
- ❖ to recommend to the General Assembly the appointment of the Secretary-General and, together with the Assembly, to elect the Judges of the International Court of Justice.

STRUCTURE OF THE COUNCIL

The Security Council originally consisted of 11 members-five permanent members (China, France, the Soviet Union, the United Kingdom, and the United States) and six nonpermanent members elected by the UN General Assembly for two-year terms. An amendment to the UN Charter in 1965 increased council membership to 15, including the original five permanent members and 10 non-permanent members. Among the permanent members, the People's Republic of China replaced the Republic of China in 1971, and the Russian Federation succeeded the Soviet Union in 1991. The non-permanent members are generally chosen to achieve equitable representation among geographic regions, with five members coming from Africa or Asia, one from Eastern Europe, two from Latin America, and two from Western Europe or other areas. Five of the 10 non permanent members are elected each year by the General Assembly for two-year terms, and five retire each year. The presidency is held by each member in rotation for one month.

Each member has one vote. On all "procedural" matters -the definition of which is sometimes in dispute decisions by the council are made by an affirmative vote of any nine of its members. Substantive matters, such as the investigation of a dispute or the application of sanctions, also require nine affirmative votes, including those of the five permanent members holding veto power. In practice, however, a permanent member may abstain without impairing the validity of the decision. A vote on whether a matter is procedural or substantive is itself a substantive question. Because the Security Council is required to function continuously, each member is represented at all times at the United Nations headquarters in New York City.

Any state even if it is not a member of the UN-may bring a dispute to which it is a party to the attention of the Security Council. When there is a complaint, the council first explores the possibility of a peaceful resolution. International peacekeeping forces may be authorized to keep warring parties apart pending further negotiations (see United Nations Peacekeeping Forces). If the council finds that there is a real threat to the peace, a breach of the peace, or an act of aggression (as defined by Article 39 of the UN Charter), it may call upon UN members to apply diplomatic or economic sanctions. If these methods prove inadequate, the UN Charter allows the Security Council to take military action against the offending nation.

KEY TERMS

- a. UN Charter: Signed on June 26, 1945, the Charter of the United Nations is the foundational treaty of the United Nations intergovernmental organization.
- b. Veto Power: Is the defined authority of the P-5 to eliminate any draft resolution on the floor of the UNSC with one vote against.
- c. Permanent Member: The five member states who have been given status of consistent membership within the UNSC.
- d. Non-Permanent Member: Pursuant to Article 23 of the UN Charter, ten of the 15 Council members are elected by the General Assembly for two-year terms on the Security Council.
- e. Sanctions: Sanctions are enforcement mechanisms utilized by the security council in order to further their goals. They can take the form of economic sanctions, arms embargoes, travel bans, etc.
- f. Security Council: One of the principal organs of the UN, the Security Council has primary responsibility under the UN Charter for the maintenance of international peace and security.
- g. Peacekeeping Missions: UN peacekeeping missions are mandated by the Security Council to provide security and political and peace-building support to countries in conflict or post-conflict situations. They are guided by the principles of consent of the host country, impartiality, and non-use of force except in self-defense, defense of the mandate or protection of civilians if so authorized by the Council.

INTRODUCTION TO THE AGENDA

On 10 May 2024, the General Assembly (GA) adopted by an overwhelming majority Resolution ES-10/23 on the admission of the State of Palestine to the United Nations. The resolution does not pronounce the admission. After determining in point 1 of the operative part that the State of Palestine meets the requirements for admission under Article 4(1) of the Charter, the GA “recommends that the Security Council (SC) reconsider the matter favourably, in the light of this determination and of the advisory opinion of the International Court of Justice of 28 May 1948, and in strict conformity with Article 4 of the Charter” (para 2). Under Article 4(2) of the Charter, the power to admit a new State is a prerogative of the GA, but on a recommendation from the SC.

The reasons for this apparent procedural reversal can be easily explained in light of various references in the resolution. On 18 April 2024, a draft SC resolution recommending the admission of the State of Palestine to the United Nations (S/2024/312) was not adopted. It received twelve favourable votes, abstentions from the United Kingdom and the Swiss Confederation, and a vote against by the United States. In justifying its vote, which resulted in the rejection of the proposal, the United States generically indicated that Palestine would not meet the criteria of Article 4(1) of the Charter. However, in explaining its vote, the United States specified that “(t)his vote does not reflect opposition to Palestinian statehood, but instead is an acknowledgment that it will only come from direct negotiations between the parties.” The United States also reiterated this position in the debate in the GA. The US Permanent Representative to the United Nations pointed out that “statehood will come from a process that involves direct negotiations between the parties”.

It is plausible to believe that this position, indeed ambiguous, brings together two demands that are not easily reconciled: support for the recognition of the statehood of Palestine, in accordance with the two-state model, and support for the position of the Israeli government, hostile to such solution. Be that as it may, it emerges that the United States made it clear that its unfavourable vote depended, at least partly, on the lack of consent of a third state, a condition additional to the requirements of Article 4(1).

LEGAL CONTOURS OF ADMISSION OF THE STATE OF PALESTINE

There are elements to compare this case to another that occurred in remote times, relating to the claim of some states to make the outcome of the admission procedure dependant on political conditions different from those laid down by Article 4(1). This impression seems to be confirmed by Resolution ES-10/23, which, in paragraph 2 of the operative part, referred to the Advisory Opinion of the International Court of Justice of 28 May 1948 on the Conditions of Admission of a State to the United Nations (Article 4 of the Charter) (ICJ Reports 1948, p. 57). This advisory opinion, requested by the GA, concerned the conduct of a member that intended to make its vote conditional on the simultaneous admission of other candidate States.

The issue was undoubtedly controversial in 1948 and remains so today. It is a legal dilemma that is difficult to solve, relating to the nature of the Charter and its legal order. On the one hand, the universal vocation of the United Nations requires that the admission of States be subject only to the conditions laid down in Article 4(1), among which the “peace-loving” character of the State acquires a predominant character. On the other hand, it is difficult to curtail the discretion of the main political bodies of the United Nations to the point of imposing on them a legal duty to pronounce the admission where those conditions are met.

In its 1948 advisory opinion, the ICJ found that the conditions of admission laid down in Article 4(1) are exhaustive. Consequently, when these conditions are met, the political discretion of UN organs ceases, and the duty to admit the candidate State is imposed. The opinion clearly states that “(t)he political character of an organ cannot release it from the observance of the treaty provisions established by the Charter when they constitute limitations on its powers or criteria for its judgment”.

Although not devoid of theoretical coherence, this solution remains fragile in practice, particularly regarding the criteria for determining the reasons for an unfavourable vote. Aware of this difficulty, the Court stated that the “additional conditions” would be only those expressed in states’ explanations of vote before the organs of the United Nations. It would, therefore, be impossible for these conditions to derive from other sources revealing States’ intentions or even from psychological or deductive investigations (p. 7).

Even with this clarification, which seeks to objectify the “additional conditions”, the absence of legal remedies makes the existence of a legal duty to proclaim the admission to the UN quite controversial. Not surprisingly, from 1948 up to the present day, the issue only emerged episodically.

The GA’s resolution of 10 May might bridge this logical aporia. After determining that the State of Palestine meets the requirements for admission established in Article 4(1) and having taken note of the SC’s lack of recommendation, which is a prerequisite for the admission by the GA, the resolution adopted “modalities” to involve that State in GA’s activities, conferring on it special powers and prerogatives, many of which are intimately linked to the status of a member.

Consequently, the exercise of these powers and prerogatives, carefully specified in the annex, could, even within the limited scope of the GA’s remit, equate the status of the State of Palestine with that of a member state. The only immediately perceptible restriction concerns the right to vote, a right permeated with a high symbolic value. However, this limitation could be amply compensated for by the power to contribute to the formation and implementation of the acts of the GA on equal terms with the member states.

It is not easy to decipher the legal meaning of these measures. While proclaiming its compliance with Article 4(2), the GA has emptied a significant part of its contents. There is, indeed, a clear divergence between the resolution and Article 9 of the Charter of the United Nations, which states that “(t)he General Assembly shall consist of all the Members of the United Nations”. Although the State of Palestine cannot be formally qualified as member of the United Nations, it is empowered, by virtue of the resolution ES-10/23, to exercise powers and prerogatives typical of a member.

From a different perspective, the reasons stated by Resolution ES-10/23 seem to conceive these measures as a form of reaction to the SC’s refusal to fulfil its alleged duty to admit the State of Palestine on the basis of additional conditions to those indicated by Article 4(1).

This impression is upheld by the wording of the resolution, which reiterates its conviction that “the State of Palestine is fully qualified for membership in the United Nations in accordance with Article 4 of the Charter” and expresses “deep regret and concern that, on 18 April 2024, one negative vote by a permanent member of the Security Council prevented the adoption of the draft

resolution supported by 12 members of the Council recommending the admission of the State of Palestine to membership in the United Nations”. This reading can be further confirmed by a passage in paragraph 3 of the operative part of the resolution, where the GA pointed out that the measures have been adopted “on an exceptional basis and without setting a precedent”.

All in all, various elements converge on the hypothesis that Resolution ES-10/23 was adopted as a form of reaction to an unlawful conduct of the Security Council, which would have failed in its legal duty to admit a State that meets all the requirements of Article 4(1) of the Charter. One could be tempted to use for this reaction the formula “lawful measures”, which echoes in both the ARS and ARIO, namely the instruments aimed to codify the law of international responsibility. The strangeness of this situation is that this reaction is not addressed to another legal person of international law but, instead, to another organ of the special legal order of the Charter. Although the resolution highlights the exceptional nature of this situation, whereby these measures cannot be regarded as a precedent, one can plausibly maintain that the reaction could be repeated before similar situations.

If that were the case, the resolution or the method which led to its adoption could have systemic effects on the Charter’s legal system. If the GA considered that the SC fails to fulfill its legal obligations under the Charter, it may act to mitigate the effects of that failure without, however, formally infringing the exclusive prerogatives conferred on the SC by the Charter. At a time when the polarization between the Great Powers makes it difficult to carry out the functions entrusted by the Charter to the Security Council, the resolution AGES-10/23 could indicate a reasonably viable path to achieve the needs and interests of the international community.

TERRITORIAL DISPUTES AND CONFLICTS: HISTORY OF PALESTINIAN CONFLICT

A territorial dispute is a disagreement between two or more States about which State exercises sovereignty over a certain part of the territory. Territorial disputes fall within two different categories. Certain territorial disputes concern the entirety of the territory of a State thus resulting in a challenge to that State's existence. Other territorial disputes only affect part of one or more States' territory and concern the placement of one or more boundaries that delimit the territory over which each State exercises sovereignty. International law sets out the rules governing the control and transfer of territory.

International conflict is best understood as a multifaceted process of mutual influence and not just a contest in the exercise of coercive power. Much of international politics entails a process of mutual influence in which each party seeks to protect and promote its own interests by shaping the behavior of the other party. Conflict occurs when these interests clash, that is, when attainment of one party's interests (and fulfillment of the needs that underlie them) threatens, or is perceived to threaten, the interests (and needs) of the other party. Therefore, in pursuing the conflict, the parties engage in mutual influence, designed to advance their own positions and to block the adversary. Similarly, in conflict resolution, by negotiation or other means, the parties exercise influence to induce the adversary to come to the table, to make concessions, to accept an agreement that meets their interests and needs, and to live up to that agreement. Third parties also exercise influence in conflict situations by backing one party or the other, by mediating between them, or by maneuvering to protect their own interests.

One fundamental principle of international law relevant to territorial disputes is the prohibition of the use of force in resolving conflicts. The United Nations Charter explicitly states that member states shall refrain from the threat or use of force against the territorial integrity or political independence of any state. This principle underscores the importance of peaceful negotiations and diplomacy in settling disputes, emphasizing dialogue over military aggression.

The International Court of Justice (ICJ), the principal judicial organ of the United Nations, plays a significant role in the resolution of territorial disputes. States involved in a dispute can voluntarily submit their case to the ICJ, which then provides a legal opinion based on international law. While the ICJ's decisions are binding, their effectiveness depends on the willingness of states to comply. Nevertheless, the court serves as a platform for the peaceful adjudication of disputes, contributing to the development and clarification of international law. Another avenue for conflict resolution is arbitration, where disputing parties agree to submit their case to an impartial third party or tribunal. The Permanent Court of Arbitration (PCA) in The Hague is a notable institution that facilitates arbitration in international disputes. Arbitration offers a more flexible and confidential process compared to the formal proceedings of the ICJ, making it an attractive option for states seeking a less publicized resolution. Thus, delegates must decipher a concrete understanding

of conflict resolution to garner support for admission of a disputed territory since that stems the undeniable question of jurisprudence and accountability.

What are the origins of this particular conflict?

1) Balfour Declaration:

The seeds of the conflict were laid in 1917 when the then British Foreign Secretary Arthur James Balfour expressed official support of Britain for a Jewish "national home" in Palestine under the declaration Creation Of Palestine: Unable to contain Arab and Jewish violence, Britain withdrew its forces from Palestine in 1948, leaving responsibility for resolving the competing claims to the newly created UN The UN presented a partition plan to create independent Jewish and Arab states in Palestine which was not accepted by most of Arab nations. Arab Israel War (1948): In 1948, the Jewish declaration of Israel's independence prompted surrounding Arab states to attack. At the end of the war, Israel controlled about 50% more territory than originally envisioned by the UN partition plan. UN Partition Plan: As per the Plan, Jordan controlled the West Bank and Jerusalem's holy sites, and Egypt controlled the Gaza Strip. But it fell short of solving the palestinian crisis which led to the formation of in 1964

2) Palestinian Liberation Organisation

PLO was founded, with the aim of freeing Palestine from clutches of Israel and Jewish domination and setting up the dominance of Muslim Brotherhood in the Arab world. The United Nations granted the PLO observer status in 1975 and recognizes Palestinians' right to self-determination.

3) Six-Day War:

In 1967 war, Israeli forces seized the Golan Heights from Syria, the West Bank & East Jerusalem from Jordan and Sinai Peninsula & Gaza strip from Egypt. Camp David Accords (1978): "Framework for Peace in the Middle East" brokered by the U.S. set the stage for peace talks between Israel and its neighbors and a resolution to the "Palestinian problem". This however remained unfulfilled.

4) Emergence of Hamas:

1987 Hamas, a violent offshoot of Egypt's Muslim Brotherhood seeking to fulfill its agenda through violent jihad. Hamas- It is regarded as a terrorist

organization by the U.S. government. In 2006, Hamas won the Palestinian Authority's legislative elections. It ejected Fatah from Gaza in 2007, splitting the Palestinian movement geographically, as well

1987: Tensions in the occupied territories of West Bank and Gaza reached boiling point resulting in the First intifada (Palestinian Uprising). It grew into a small war between Palestinian militants and the Israeli army.

Oslo Accords: 1993: Under the Oslo Accords Israel and the PLO agree to officially recognize each other and renounce the use of violence. The Oslo Accords also established the Palestinian Authority, which received limited autonomy in the Gaza Strip and parts of the West Bank.

2005: Israel begins a unilateral withdrawal of Jews from settlements in Gaza. However, Israel kept tight control over all border crossings (blockade). 2012-UN upgrades Palestinian representation to that of "non-member observer state".

5) Territorial Disputes of Israel with Neighboring Countries:

West Bank: The West Bank is sandwiched between Israel and Jordan. One of its major cities is Ramallah, the de facto administrative capital of Palestine. Israel took control of it in the 1967 war and has over the years established settlements there. Gaza: The Gaza Strip located between Israel and Egypt. Israel occupied the strip after 1967, but relinquished control of Gaza City and day-to-day administration in most of the territory during the Oslo peace process. In 2005, Israel unilaterally removed Jewish settlements from the territory, though it continues to control international access to it. Golan Heights: The Golan Heights is a strategic plateau that Israel captured from Syria in the war of 1967. Israel effectively annexed the territory in 1981. Recently, the USA has officially recognized Jerusalem and Golan Heights as a part of Israel.

QUESTIONS TO CONSIDER

- 1) Define grounds of admissibility. How can the historical claims be substantiated under the rule of law?
- 2) What can be the admissibility criteria under de jure and de facto annexures?
- 3) In case of a conflict of colonial effectivities, what is the accountability of admission left with Security Council and how do we rule out any possible legal conjectures?